

to recover damages based on a claim of failure to prevent ... harassment ... she must show three essential elements: 1) plaintiff was subjected to ... harassment ...; 2) defendant failed to take all reasonable steps to prevent ... harassment ...; and 3) this failure caused plaintiff to suffer injury, damage, loss or harm.” *Caldera v. Department of Corrections and Rehabilitation* (2018) 25 Cal.App.5th 31, 43–44 (internal quotations omitted). “There can be no liability for an employers’ failure to prevent harassment claim unless actionable harassment occurred.” *Ibid*.

Once an employer is informed of the sexual harassment, the employer must take adequate remedial measures. The measures need to include immediate corrective action that is reasonably calculated to 1) end the current harassment and 2) to deter future harassment. The employer's obligation to take prompt corrective action requires 1) that temporary steps be taken to deal with the situation while the employer determines whether the complaint is justified and 2) that permanent remedial steps be implemented by the employer to prevent future harassment once the investigation is completed. An employer has wide discretion in choosing how to minimize contact between the two employees, so long as it acts to stop the harassment. “[T]he reasonableness of an employer's remedy will depend on its ability to stop harassment by the person who engaged in harassment.”

Bradley v. Department of Corrections & Rehabilitation (2008) 158 Cal.App.4th 1612, 1630 (citations omitted).

At bar, it is undisputed that Plaintiff reported the December 3, 2021, incident to her supervisor on December 6, 2021, and thereafter reported the matter to the Human Resources director. UMF 6-7. Defendants then contends the Human Resources director would “speak with Salmon about the reported conduct.” UMF 10. However, Defendants failed to present any evidence as to how they took prompt corrective action to deal with the situation temporarily while the initial complaint was being investigated. Moreover, Defendants failed to include any evidence regarding the temporary and/or permanent remedial response to Plaintiff’s 2022 or 2024 reports to Human Resources. *See* PUMF 16-20, 29, 40-42. Defendants did not meet their initial burden to establish that it took all reasonable steps to prevent harassment. Defendants are not entitled to judgment as a matter of law as to this claim.

4. CU0001544 Caitlin Peters vs. Cara Krpalek, et al.

The June 26, 2026, demurrer by Defendant Jiri Krpalek is deemed waived.

The Court ruled on March 13, 2026, as follows: “If Defendant wishes to proceed with a demurrer he must file the same, notice the same for hearing, serve the same and provide proof of service of the same, all prior to March 27, 2026. If no demurrer is properly filed, served and noticed prior thereto, the Court shall conclude that Defendant is waiving his right to demur.”

At bar, there is no proof filed with the Court that Defendant timely served the moving papers on Plaintiff as required by the Court’s order and Code of Civil Procedure section 1005(b). As such, Defendant has waived his right to demur.

5. CU0002491 Malin Kumar Ram vs. Rodney Andrews, et al.